

F. Dock Owner's Continuing Liability on Lease. The liability of the Dock Owner under these covenants shall continue, notwithstanding the fact that he may have entered into a lease as provided herein.

G. Violation of Procedures by Dock Owner; Association's Right of Redemption. In the event that a Dock Owner shall lease or sell such Dock without giving written notice to the Association as herein provided, so that the Board is not afforded the opportunity to elect to lease or purchase the Dock prior to the consummation of such lease or purchase, then the Association shall have the right to redeem the Dock from such lease or sale transaction by reimbursing the tenant for the amount of any rent paid in advance, in which case such tenant shall execute a lease in favor of the Association identical with that being redeemed, or by refunding to the purchaser of such Dock the price paid therefor, in which case such purchaser shall convey the Dock to the Association or its designee.

The right of redemption granted herein shall exist for a period of six (6) months from the date on which such lease or sale may be consummated without prior notice to the Board as required herein.

H. Restrictions on Association's Right of First Refusal. The right of first refusal shall not apply to any of the following:

1. the foreclosure or other judicial sale of a Dock, although the title of the purchaser at any foreclosure or judicial sale shall thereafter be subject to the right of first refusal granted to the Association pertaining to the lease or sale of such Dock;
2. the conveyance made by the Dock Owner to an institutional lender in lieu of foreclosure;
3. the lease, sublease, listing for lease, sale or purchase of any Dock to or by Developer. Any sublease or lease by a Dock Owner to a party approved by Developer, or made through the auspices of Developer, shall be treated as though it were a sublease or lease made to or by Developer.

ARTICLE XII

INSURANCE AND RECONSTRUCTION

A. Dock Owner's Hazard Insurance. Each Dock Owner shall bear the risk of loss and damage to his Dock and any and all boats, ships, or vessels, furniture, personal effects and other personal property belonging to him or carried on his person which property is located either in the Dock or in or on the common elements. The foregoing shall not apply: (a) to any property constituting a portion of the common elements; or (b) to fixtures, installations or additions covered by the Association's hazard policy as described in Paragraph E of this Article.

Each Dock Owner may, at his own expense, obtain insurance coverage for loss of or damage to his Dock and any of his personal property.

B. Dock Owner's Liability Insurance. Each Dock Owner shall be liable for injuries or damages resulting from an accident on his own Dock, to the same extent that a homeowner would be liable for an accident occurring within his house.

Each Dock Owner may, at his own expense, obtain insurance coverage against personal liability for injury to the person or property of another while within such Owner's Dock or upon the Common Elements, or Limited Common Elements.

No Dock Owner shall be liable personally for any damages caused by the Association in connection with the use of the Common Elements, or Limited Common Elements.

C. Requirements Concerning Dock Owner's Insurance. All such insurance obtained by any Dock Owner shall, wherever available, state that the insurer waives its right of subrogation as to any claims against: (a) other Dock Owners; (b) the Association; and (c) the respective servants, agents and guests of other Dock Owners.

D. Association's Hazard Insurance. The Association shall maintain casualty insurance covering all of the common elements in an amount either: (1) equal to the maximum insurance replacement value thereof, exclusive of excavation and foundation costs, as determined annually by the insurance carrier; or (2) if approved by the Board, not less than eighty percent (80%) co-insurance basis. Such coverage shall afford protection against: (a) loss or damage by fire or other hazards covered by the standard extended coverage or other perils endorsement, subject to such deductible provision as the Board may approve from time to time; and (b) such other risks as customarily are or shall be covered with respect to similar construction, location and use to the Condominium, including vandalism, malicious mischief, windstorm, hurricane, water damage and war risk, if available.

E. Association's Liability Insurance. The Association shall maintain public liability insurance in such amounts and in such forms as shall be necessary to protect the Association. All such liability insurance shall contain endorsements to cover all of the Dock Owners as a group.

F. Association's Workmen's Compensation Insurance. The Association shall maintain workmen's compensation insurance to meet the requirements of law.

G. Other Types of Insurance. The Association may obtain from time to time such other insurance coverage as the Board shall deem necessary and proper.

H. Purchase of Association's Insurance. All authorized insurance shall be purchased by the Board. The cost of the insurance shall be a common expense, as shall be any other fees and expenses incurred which may be necessary or incidental to carrying out the provisions hereof.

I. Inspection of Policies. A copy of each insurance policy in effect shall be made available for inspection by Dock Owners at reasonable times.

J. Selection of Insurance Carrier(s). The Board shall have the right to select the insurance carrier(s) from whom insurance coverage may be obtained. All parties beneficially interested in such insurance coverage shall be bound by the selections so made. However, the foregoing shall not be to the exclusion of the rights reserved to institutional lenders hereunder.

K. Association as Authorized Agent. The Association shall be authorized agent for all of the Dock Owners for: (a) filing proofs of loss required under any policy of fire and casualty insurance; and (b) negotiating and agreeing to settlements as to the value and extent of any loss which may be covered under any policy of fire and casualty insurance. The Association shall have full right and authority to execute in favor of any insurer a release of liability arising out of any occurrence covered by any policy of fire and casualty insurance and resulting in loss of or damage to insured property. Any proof of loss and/or any release of liability executed by the Association shall be binding upon all Dock Owners, their respective mortgagees and other parties who may claim any lien or encumbrance upon their respective Docks.

L. Insurance Trustee. The Board, in its discretion, may designate an Insurance Trustee which shall be a banking institution having trust powers and doing business in the State of Florida.

The sole duty of the Insurance Trustee shall be to receive such proceeds of fire and casualty insurance as are paid and to hold same in trust for the purposes herein stated, and for the benefit of the Association and the Dock Owners and their respective mortgagees. Such insurance proceeds shall be disbursed by the Insurance Trustee as hereinafter provided.

The Insurance Trustee shall not be liable for any of the following: (1) the payment of premiums; (2) the renewal of any policy of fire and casualty insurance; (3) the sufficiency of coverage; (4) the form or content

of any policy; (5) the failure to collect any insurance proceeds. The Insurance Trustee shall be liable only for its willful misconduct, bad faith or gross negligence, and then only for such money which comes into its possession. Whenever the Insurance Trustee may be required to make distribution of insurance proceeds to Dock Owners and their mortgagees, as their respective interests may appear, or to any other party, the Insurance Trustee may rely upon a certificate of the President and Secretary of the Association. Such certificate shall be provided to the Insurance Trustee upon its request to the Association, and shall certify to the Insurance Trustee the name of each Dock Owner and the name of each mortgagee for the Dock.

All policies of fire and casualty insurance covering the Condominium may provide for the insurance proceeds covering any loss to be payable to the Insurance Trustee, or to its successor.

If an Insurance Trustee is appointed, the Association shall pay, to the Insurance Trustee as a common expense: (1) a reasonable fee for its services rendered hereunder; and (2) such costs and expenses as the Insurance Trustee may incur in the performance of any duties and obligations imposed upon it hereunder.

M. Insurance Proceeds. In the event of loss or damage to property covered by fire and casualty insurance, the Association shall, within sixty (60) days after any such occurrence, obtain reliable and detailed estimates of the cost to restore such damaged property to condition as good as that before such loss or damage. Such estimates shall include the cost of any professional fees and the premium for such bond as the Board of Administration may deem necessary and proper.

1. Distribution of Excess Proceeds. In the event of loss or damage which is covered by the fire and casualty insurance, the proceeds received by the Association or the Insurance Trustee shall be applied to the repair, replacement or reconstruction of such loss or damage. If the proceeds are in excess of the cost of the repair, replacement or reconstruction, then such excess proceeds shall be paid separately by the Association or Insurance Trustee to each of the Dock Owners and their respective mortgagees in proportion to their common interests.
2. Assessment Where Proceeds Are Insufficient. If it shall appear that the insurance proceeds covering the fire and casualty loss or damage payable to the Association or the Insurance Trustee are insufficient to pay for the repair, replacement or reconstruction of the loss or damage sustained by the common elements, then the Association shall deposit a sum which, together with the insurance proceeds, will be sufficient to completely pay for the repair, replacement or reconstruction of any such loss or damage. The monies deposited by the Association in such event, may be drawn from the replacements reserve fund. If the sum in such fund is insufficient, then the Association shall levy and collect an assessment proportionally against all the Dock Owners, in the amount needed to pay for such repair, replacement or reconstruction. Such assessment shall be collected not later than thirty (30) days from the date the Association or the Insurance Trustee receives the insurance proceeds.
3. Loss and/or Damage Not Exceeding \$15,000. Anything herein to the contrary notwithstanding, in the event of loss of or damage to common elements, where the loss or damage is established as not more than \$15,000.00 (regardless of the amount which may be available under any applicable insurance policy or policies), the insurance proceeds shall be paid to the Association. The Association thereafter shall be responsible for the repair, replacement and reconstruction of the subject property.

In the event of any loss or damage to personal property belonging to the Association (which may be a part of the Common Elements) which the Association determines not to replace or restore the insurance proceeds applicable thereto: (1) shall be paid by the Association and/or the Insurance Trustee to all Dock Owners and their relative mortgagee(s) as their interest may appear, in the manner and in the proportions hereinabove provided; or (2) at the election of the Association, may be (a) held by the Association for the future replacement or restoration of the personal property lost or damaged, or (b) retained and used as an additional operating or replacements reserve, or (c) used to reduce the common expenses of the Association, or (d) used as the Board shall deem proper.

4. Contracts for Repair, Replacement or Reconstruction. Before they may become binding, all contracts for repair, replacement or reconstruction of loss or damage shall be approved by the Board. The Board may authorize the Insurance Trustee to make payments under such contracts. The Board may enter into such agreements with the Insurance Trustee as it may deem in the best interest of the Association for the purpose of effectuating the intent hereof.

N. Self-Insurance. In the event that there are no mortgages on any of the Docks, then upon unanimous consent of all of the Dock Owners, the Dock Owners may become self-insured with each Dock Owner assuming this individual responsibility and, correspondingly, the responsibility each to the others.

ARTICLE XIII

INSTITUTIONAL LENDERS

So long as any institutional lender(s) shall hold any mortgage upon any Dock(s) or shall be the Owner of any Dock(s), such institutional lender(s) shall have the following rights which may be exercised by written notice to the Association:

A. To approve each company chosen by the Association with which casualty insurance is placed and the amount of such casualty insurance to be carried.

B. To approve the Insurance Trustee, if one is designated by the Association.

C. To be furnished, within sixty (60) days following the end of each calendar year, with a copy of the annual financial statement and report of the Association, prepared by an accountant designated by the Association, including a detailed statement of annual carrying charges or income collected and operating expenses.

D. To be given notice by the Association of any meeting of the membership held for the purpose of considering any proposed amendment to this Declaration, or to the Articles of Incorporation or the By-Laws, which notice shall state the nature of the amendment being proposed.

E. To be given written notice of default by any Dock Owner, whose Dock is encumbered by a mortgage held by such lender, such notice to be sent to the principal office of such lender.

Any institutional lender seeking to come within the provisions of this Article shall serve written notice of such intention upon the Association, by registered or certified mail, which notice shall: (1) identify the Dock(s) upon which each such institutional lender holds any mortgage(s); (2) identify any Dock(s) owned by each such lender together with sufficient pertinent facts to identify such mortgage on such Dock(s); and (3) designate the place to which notices are to be given by the Association to each such institutional lender.

ARTICLE XIV

REMEDIES IN EVENT OF DEFAULT

Each Owner, tenant and occupant of a Dock shall comply with the provisions of this Declaration, the Articles of Incorporation and the By-Laws of the Association, as the same may be amended from time to time. Failure to comply therewith shall be grounds for relief which may include an action for damages, injunctive relief, foreclosure of lien or any combination thereof. Such relief may be sought by the Association or ORIA.

Each Dock Owner shall be liable for the expense of any maintenance, repair or replacement rendered necessary by his act, neglect or carelessness, or by the act of any member of his family, any guest, employee, agent or lessee, but only to the extent that such expense is not met by the insurance proceeds paid to the Association. Such liability shall include any increase in fire insurance rates occasioned by use, misuse, occupancy or abandonment of a Dock or its appurtenances. Nothing herein, however, shall be construed so as to modify any waiver by insurance companies of rights of subrogation.

If the Association is successful in any such proceeding, it shall be entitled to recover the costs of the proceeding, and such reasonable attorneys' fees as may be determined by the Court.

The failure of the Association or of a Dock Owner to enforce any rights, provisions, covenant or condition which may be granted by this Declaration or other Condominium documents shall not constitute a waiver to enforce such rights, provisions, covenant or condition in the future.

All rights, remedies and privileges granted to the Association or the Dock Owners pursuant to any terms, provisions, covenants or conditions of this Declaration or other Condominium documents, shall be deemed to be cumulative, and the exercise of any one or more shall not be deemed to constitute an election of remedies, nor shall it preclude the party thus exercising the same from exercising such other and additional rights, remedies or privileges as may be available at law or in equity. The failure of Developer to enforce any rights, privileges, covenant or condition which may be granted to the Developer by this Declaration or other above mentioned document shall not constitute waiver of the right of Developer thereafter to enforce such right, provision, covenant or condition in the future.

The failure of institutional lender(s) to enforce any right, provision, privilege, covenant or condition which may be granted by this Declaration or other Condominium documents, shall not constitute waiver of the right of such lender(s) thereafter to enforce such right, provision, covenant or condition.

ARTICLE XV

REGISTER OF OWNERS AND MORTGAGEES

The Association shall at all times maintain a register setting forth the name of each Dock Owner. In the event of the sale or transfer of any Dock to a third party, the purchaser or transferee shall notify the Association in writing of his interest in such Dock, together with such recording information as shall be pertinent to identify the instrument by which such purchaser or transferee has acquired his interest in any Dock. Further, each Dock Owner shall immediately notify the Association of any and all mortgages on the Dock, the mortgagee(s), the amount of such mortgage(s) and all pertinent recording information. The mortgagee(s) for any Dock may notify the Association of the existence of any such mortgage(s). Upon receipt of such notice, the Association shall register in its records all pertinent information.

ARTICLE XVI

TERMINATION OF CONDOMINIUM

A. Method of Termination. This Condominium may be terminated upon proof of compliance with the following requirements:

1. consent of all of the Dock Owners to such termination, evidenced by a recorded instrument to that effect; and
2. written consent of all of the holders of mortgages and recorded liens affecting any of the Docks.

B. Effect. Upon such termination, the Condominium property shall be owned in common by the Dock Owners in the same undivided shares as each Owner previously owned in the common elements.

C. Termination in Lieu of Reconstruction. In the event of fire or other casualty or disaster which shall totally demolish the Condominium or more than two-thirds (2/3) of the improvements, then this Declaration shall terminate, unless: (a) the Owners of at least two-thirds (2/3) Docks agree that the Condominium shall be reconstructed; or (b) the applicable casualty insurance coverage requires the reconstruction as a condition precedent to the payment of insurance proceeds. Notwithstanding that all Dock Owners agree to such reconstruction, or that the casualty insurance coverage requires such reconstruction, this Declaration shall be terminated if any regulation or order of any governmental authority having jurisdiction over the Condominium prevents such reconstruction. Nothing contained in this Article shall be construed as releasing or changing any obligation which may be owed to the Association, for itself or the Dock Owners, under any insurance policy or policies. Reference to two-thirds (2/3) of the improvements shall be taken to mean two-thirds (2/3) of the total value of all of the improvements as of the day prior to the event(s) causing such damage or destruction, as determined by the Board.

If this Declaration is to be terminated after destruction of the Condominium, then a certificate of resolution of the Board to such effect and notice of cancellation and termination shall be executed by the President and Secretary of the Association in recordable form and recorded in the Public Records of Monroe County, Florida. Upon such termination, all Dock Owners shall be tenants in common as to ownership of the common elements and the common surplus in the proportions of their interests. The lien of any mortgage or other encumbrance upon each Dock shall attach, in the same order or priority, to the percentage of undivided interest of the Dock Owner. Upon termination of this Declaration and within sixty (60) days from the date of recording of the certificate of resolution, the Owner(s) of all Docks still usable shall deliver possession of their respective Dock(s) to the Association. Upon termination of this Declaration, the Association or the Insurance Trustee shall distribute the insurance indemnity due under any casualty insurance coverage to the Dock Owners and their mortgagees, as their respective interests may appear, in accordance with their common interests as hereinbefore provided. The assets of the Association, upon termination shall be distributed to all of the Dock Owners and their mortgagees, as their respective interests may appear, in the same manner as provided for the distribution of any final insurance indemnity.

D. Creation of New Condominium. The termination of this Condominium shall not bar the creation of another condominium affecting all or any portion of the same property.

ARTICLE XVII

AMENDMENTS

A. Proposal. Amendment(s) to this Declaration may be proposed by: (1) the Board acting upon a majority vote; or (2) members of the Association owning a majority of the Docks in the Condominium. Such proposed amendment(s) shall be transmitted to the President of the Association (or other officer in the President's absence) who shall thereupon call a special meeting of the

members of the Association for a date not sooner than twenty (20) days nor later than sixty (60) days from receipt by him of the proposed amendment(s).

B. Notice. The Secretary shall give each member written notice of such special meeting, stating the time and place thereof, and reciting the proposed amendment(s) in reasonably detailed form, which notice shall be mailed not less than ten (10) day nor more than thirty (30) days before the date set for such special meeting. Any member may waive such notice in writing and such waiver, when filed in the records of the Association, whether before or after the meeting, shall be deemed equivalent to the giving of such notice to such member.

C. Adoption. At such meeting, an affirmative vote of members owning not fewer than a majority of the Docks shall be required for the approval of any proposed amendment(s). Thereupon, such amendment(s) shall be transcribed and certified by the President and Secretary as having been duly adopted. The original or an executed copy thereof, certified and executed with the same formalities as a deed, shall be recorded in the Public Records of Monroe County, Florida, within ten (10) days from the effective date of such amendment(s). Such certificate of amendment(s) shall refer specifically to the recording data identifying this Declaration. Thereafter, a copy of such amendment(s) in recorded form shall be delivered to all of the Dock Owners, but such delivery shall not be a condition precedent to the effectiveness of such amendment(s).

At an amendment meeting, a member may submit his written vote in lieu of attending such meeting or in lieu of being represented by proxy, provided that such written vote is delivered to the Secretary of the Association prior to such meeting or at such meeting.

D. Prohibition of Certain Amendments. Anything herein to the contrary notwithstanding, the following matters shall not be amended without the prior written consent of all Dock Owners: (1) the common interest appurtenant to each Dock; (2) the basis for sharing common expenses and other apportionment of assessments which may be levied by the Association; (3) the basis for sharing common expenses and other apportionment of assessments which may be levied by the Association; (4) the basis of ownership of common surplus; (5) voting rights; and (6) the right to lease Docks, (7) termination of the Management Agreement without the unanimous written consent of all Dock Owners.

Notwithstanding anything herein to the contrary, the rights and privileges granted and reserved hereunder in favor of institutional lenders shall not be amended without the prior written consent of all institutional lenders holding mortgages on Docks.

Notwithstanding anything herein to the contrary, the rights and privileges granted and reserved hereunder in favor of Developer shall not be amended without the prior written consent of Developer.

ARTICLE XVIII

MISCELLANEOUS PROVISIONS

A. Effect. The restrictions and burdens imposed by the covenants of this Declaration shall constitute covenants running with the land, and shall constitute an equitable servitude upon each Dock. This Declaration shall be binding upon Developer, its successors and assigns, and upon all parties who may subsequently become Dock Owners in the Condominium, and their respective heirs, legal representatives, successors and assigns.

B. Severability. In the event that any of the terms, provisions or covenants of this Declaration are held to be invalid or unenforceable for any reason whatsoever, such holding shall not affect, alter, modify or impair in any manner any of the other terms, provisions or covenants hereof or the remaining portions of any terms, provisions or covenants.

C. Interpretation of Content. Whenever the context so requires, the use of any gender shall be deemed to include all genders, and the use of the singular shall include the plural, and plural shall include the singular.

The provisions of this Declaration shall be liberally construed to effectuate its purpose of creating a uniform plan for the operation of a Condominium.

D. Captions. The captions used in this Declaration and exhibits annexed hereto are inserted solely as a matter of convenience and shall not be used in construing the effect or meaning of any of the text of this Declaration or exhibits.

E. Limitation on Warranties and Representations. Other than as set forth in Florida Statutes, §718.203, Developer specifically disclaims any intent to have made any warranty or representation in connection with the Condominium property or the Condominium documents, except as specifically set forth therein, and no person shall rely upon any warranty or representation not so specifically made therein. Any estimates of common expenses, taxes or other charges are deemed accurate, but no warranty or guaranty is made or intended, nor may one be relied on.

F. Notices. Whenever notices are required to be sent hereunder, the same may be delivered to Dock Owners, either personally or by mail, addressed to such Dock Owners at their place of residence in the Condominium property, unless the Dock Owner has, by written notice duly receipted for, specified a different address. Proof of such mailing or personal delivery by the Association shall be given by the affidavit of the person mailing or personally delivering said notices.

Notices to the Association shall be delivered by mail to the office of the Association at: Ocean Reef Club, Key Largo, Florida 33037.

Notices to Developer shall be delivered by mail at: Ocean Reef Club, Key Largo, Florida 33037.

All notices shall be deemed given when mailed. Any party may change his mailing address by written notice duly receipted for. Notices required to be given the personal representative of a deceased Owner, or devisee when there is not a personal representative, may be delivered either personally or by mail to such party at his or its address appearing in the records of the court wherein the estate of such deceased Owner is being administered.

G. Schedule of Exhibits. Exhibits attached hereto and made a part hereof are the following:

- Exhibit A - Legal Description,
- Exhibit B - Survey, Graphic Description and Plot Plans,
- Exhibit C - Schedule of Interest in Common Elements, Common Expenses, and Common Surplus,
- Exhibit D - Articles of Incorporation of Gatehouse Dock Condominium Association, Inc.
- Exhibit E - By-Laws of Gatehouse Dock Condominium Association, Inc.
- Exhibit F - Estimated Operating Budget for First Year of Operation for Gatehouse Dock Condominium Association, Inc.

IN WITNESS WHEREOF, GATEHOUSE DEVELOPMENT CORP. has caused these presents to be executed by its undersigned authorized officers and its Corporate Seal to be affixed hereto this _____ day of _____, 1988.

Signed, sealed and delivered
in the presence of:

GATEHOUSE DEVELOPMENT CORP.

By: _____
John Alan Sfire, President

STATE OF FLORIDA)
): ss
COUNTY OF MONROE)

I HEREBY CERTIFY that on this day, before me, an officer duly authorized in the State and County aforesaid to take acknowledgments, personally appeared Russell H. Post, well known to me to be the President of OCEAN REEF CLUB, INC., a Florida corporation, and he acknowledged executing the foregoing Declaration of Condominium in the presence of two subscribing witnesses freely and voluntarily under authority duly vested in him by said corporation.

WITNESS my hand and official seal in the County and State last aforesaid this 17th day of April, 1986.

Lori L. Palrud
Notary Public, State of Florida at Large

My Commission Expires:

LORI L. PALRUD
Notary Public State of Florida
My Commission Exp. Feb. 7, 1988
Bonded Thru General Ins. Und.

The undersigned, as a holder of record interest in a mortgage encumbering the land being submitted to condominium ownership, hereby joins in the execution of this Declaration of Condominium for the purpose of evidencing its consent thereto.

Signed, sealed and delivered
in the presence of:

GREAT AMERICAN LIFE INSURANCE CO.

[Signature]
Barbara A. Grosser

By:

[Signature]
Title: ASSISTANT SECRETARY

Attest:

[Signature]
Title: SECRETARY

(Corporate Seal)

STATE OF OHIO)
): ss
COUNTY OF HAMILTON

I HEREBY CERTIFY that on this day, before me, an officer duly authorized in the State and County aforesaid to take acknowledgments, personally appeared RONALD C. HAYES, and KAREN HOLLY HORNE, well known to me to be the Assistant Secy and Secretary of GREAT AMERICAN LIFE INSURANCE CO., an Ohio corporation, and they acknowledged executing the foregoing Declaration of Condominium in the presence of two subscribing witnesses freely and voluntarily under authority duly vested in them by said corporation.

WITNESS my hand and official seal in the County and State last aforesaid this 22nd day of APRIL, 1986.

Barbara A. Grosser
Notary Public, State of OHIO at Large

My Commission Expires:

BARBARA A. GROSSER
Notary Public, State of Ohio
My Commission Expires April 13, 1988

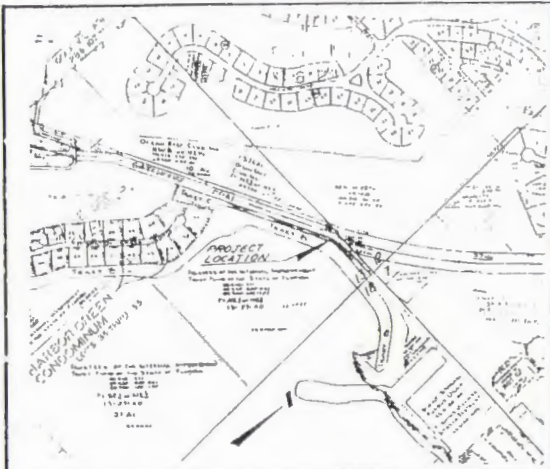
EXHIBIT "A"

LEGAL DESCRIPTION
GATEHOUSE DOCKS, A CONDOMINIUM

BEING A PORTION OF THE NORTHWEST ONE-QUARTER OF SECTION 18, TOWNSHIP 59 SOUTH, RANGE 41 EAST, "PLAT OF LANDS OF SEABOARD PROPERTIES, INC.", ACCORDING TO THE PLAT THEREOF AS RECORDED IN PLAT BOOK 4, PAGE 83 OF THE PUBLIC RECORDS OF MONROE COUNTY, FLORIDA, AND TOGETHER WITH PORTIONS OF TRACTS B AND C AND GATEHOUSE ROAD, "HARBOR COURSE SECTION THREE OCEAN REEF PLAT NO. 13", ACCORDING TO THE PLAT THEREOF AS RECORDED IN PLAT BOOK 7, PAGE 7, OF THE PUBLIC RECORDS OF MONROE COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCE AT THE NORTHWEST CORNER OF SAID SECTION 18; THENCE S1°05'21"E ALONG THE WEST LINE OF SAID SECTION FOR 35.00 FEET TO THE POINT OF BEGINNING; THENCE N88°12'44"E FOR 306.81 FEET; THENCE S10°13'36"E FOR 98.05 FEET; THENCE N84°51'17"W FOR 4.57 FEET; THENCE N84°40'29"W FOR 84.80 FEET; THENCE N84°08'47"W FOR 180.50 FEET; THENCE N84°45'09"W FOR 96.50 FEET; THENCE N86°51'44"W FOR 73.32 FEET; THENCE N88°35'53"W FOR 72.04 FEET; THENCE S87°08'20"W FOR 55.40 FEET; THENCE S74°29'32"W FOR 47.05 FEET; THENCE S63°29'50"W FOR 23.31 FEET; THENCE S61°51'46"W FOR 46.50 FEET; THENCE S61°44'22"W FOR 181.50 FEET; THENCE S61°03'47"W FOR 144.42 FEET; THENCE S60°57'00"W FOR 384.00 FEET; THENCE S60°05'56"W FOR 36.20 FEET; THENCE S62°12'44"W FOR 19.39 FEET; THENCE N28°47'20"W FOR 52.56 FEET TO A POINT ON THE SOUTHERLY RIGHT-OF-WAY LINE OF AFOREMENTIONED GATEHOUSE ROAD; THENCE N61°12'40"E ALONG SAID SOUTHERLY RIGHT-OF-WAY LINE AND ITS NORTHEASTERLY PROLONGATION FOR 721.52 FEET TO THE POINT OF CURVATURE OF A CIRCULAR CURVE CONCAVE TO THE SOUTHEAST; THENCE NORTHEASTERLY ALONG THE ARC OF SAID CURVE HAVING A RADIUS OF 565.00 FEET AND A CENTRAL ANGLE OF 29°04'35" FOR 286.73 FEET TO THE POINT OF TANGENCY; THENCE S89°42'45"E FOR 136.87 FEET TO THE POINT OF BEGINNING. SAID PARCEL CONTAINS 1.84 ACRES MORE OR LESS.

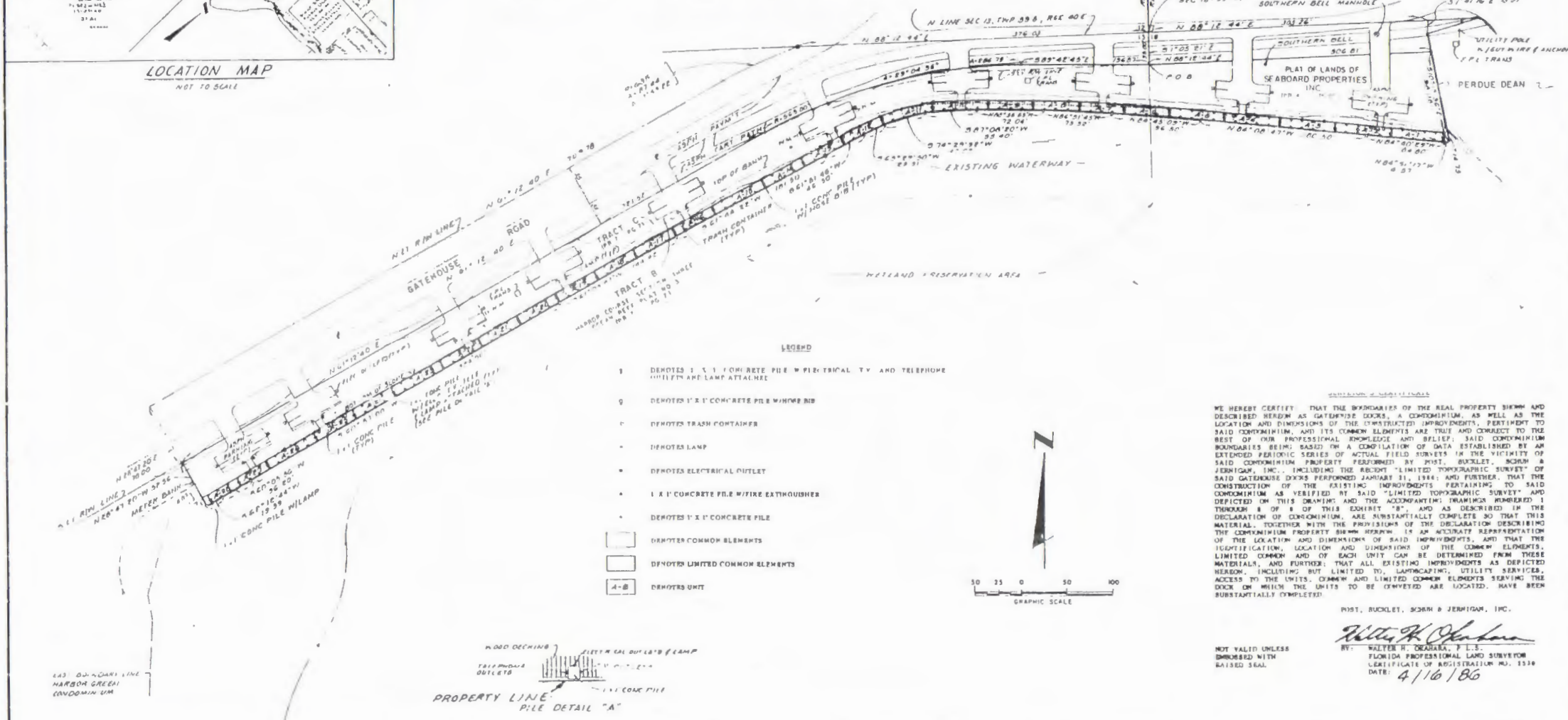
04-359.21
Legal #2
March 14, 1986
Revised 4/8/86
BL/rg



LOCATION MAP
NOT TO SCALE

LEGAL DESCRIPTION
BEING A PORTION OF THE NORTHWEST ONE-QUARTER OF SECTION 18, TOWNSHIP 33 NORTH, RANGE 41 EAST, "PLAT OF LANDS OF SEABOARD PROPERTIES, INC. ACCORDING TO THE PLAT THEREOF AS RECORDED IN PLAT BOOK 4, PAGE 13 OF THE PUBLIC RECORDS OF MONROE COUNTY, FLORIDA, AND TOGETHER WITH PORTIONS OF TRACTS B AND C AND GATEHOUSE ROAD, "PLAT OF LANDS OF SEABOARD PROPERTIES, INC. ACCORDING TO THE PLAT THEREOF AS RECORDED IN PLAT BOOK 4, PAGE 13, OF THE PUBLIC RECORDS OF MONROE COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

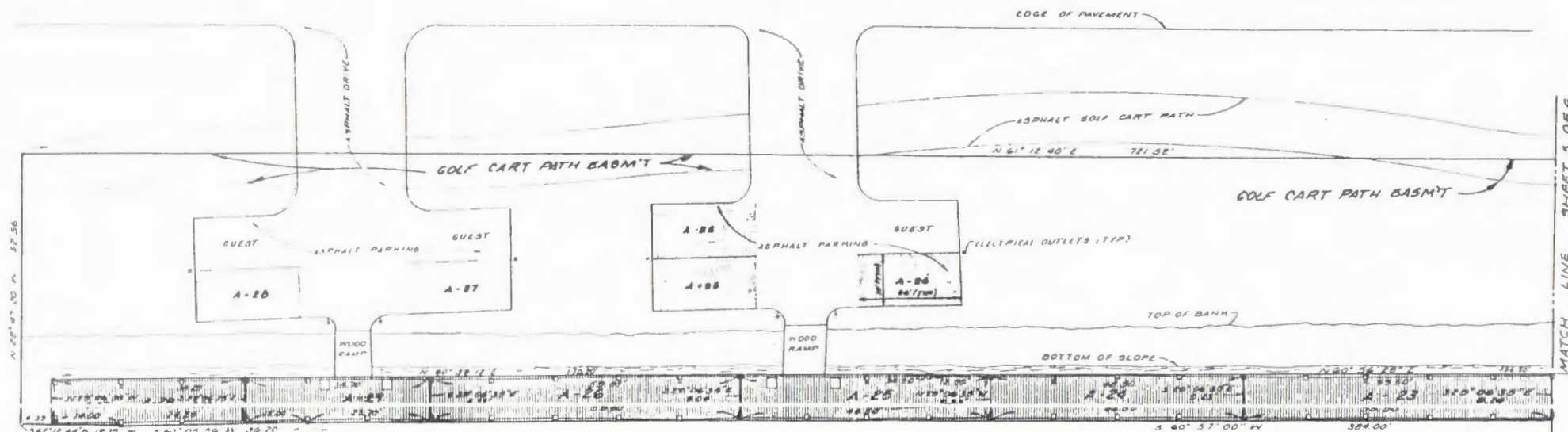
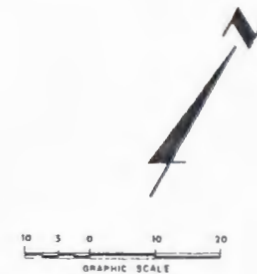
BEGINNING AT THE NORTHWEST CORNER OF SAID SECTION 18; THENCE S1°41'31"E ALONG THE WEST LINE OF SAID SECTION FOR 53.40 FEET TO THE POINT OF BEGINNING; THENCE S88°12'44"E FOR 104.31 FEET; THENCE S10°13'38"E FOR 53.55 FEET; THENCE S88°12'44"E FOR 4.57 FEET; THENCE S88°12'44"E FOR 64.80 FEET; THENCE S88°12'44"E FOR 169.50 FEET; THENCE S88°12'44"E FOR 50.50 FEET; THENCE S88°12'44"E FOR 13.33 FEET; THENCE S88°12'44"E FOR 72.64 FEET; THENCE S88°12'44"E FOR 53.40 FEET; THENCE S88°12'44"E FOR 47.55 FEET; THENCE S88°12'44"E FOR 13.33 FEET; THENCE S88°12'44"E FOR 48.50 FEET; THENCE S88°12'44"E FOR 141.50 FEET; THENCE S88°12'44"E FOR 114.41 FEET; THENCE S88°12'44"E FOR 244.80 FEET; THENCE S88°12'44"E FOR 14.50 FEET; THENCE S88°12'44"E FOR 19.18 FEET; THENCE S88°12'44"E FOR 31.34 FEET TO A POINT ON THE SOUTHERLY RIGHT-OF-WAY LINE OF AFORESAID GATEHOUSE ROAD; THENCE S88°12'44"E ALONG SAID SOUTHERLY RIGHT-OF-WAY LINE AND ITS NORTHEASTERLY PROLONGATION FOR 131.55 FEET TO THE POINT OF CURVATURE OF A CIRCULAR CURVE CONCAVE TO THE SOUTHEAST; THENCE NORTHEASTERLY ALONG THE ARC OF SAID CURVE HAVING A RADIUS OF 511.18 FEET AND A CENTRAL ANGLE OF 12°54'33" FOR 166.71 FEET TO THE POINT OF TANGENCY; THENCE S88°12'44"E FOR 136.81 FEET TO THE POINT OF BEGINNING. SAID PARCEL CONTAINS 1.51 ACRES MORE OR LESS.



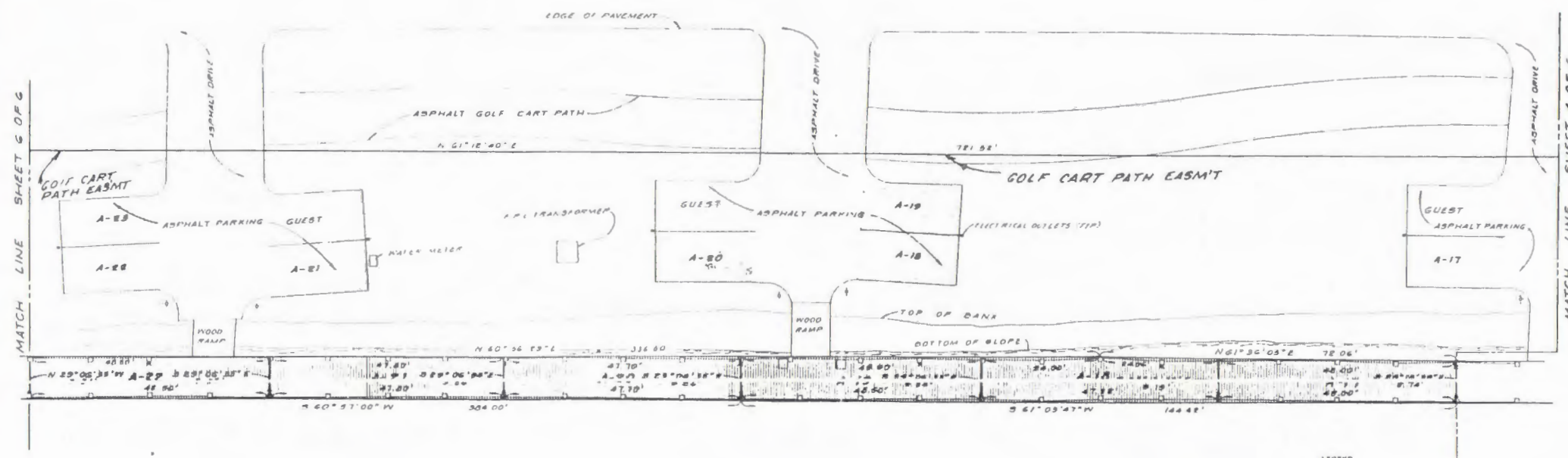
WE HEREBY CERTIFY THAT THE BOUNDARIES OF THE REAL PROPERTY SHOWN AND DESCRIBED HEREON AS GATEHOUSE DOCKS, A CONDOMINIUM, AS WELL AS THE LOCATION AND DIMENSIONS OF THE CONSTRUCTED IMPROVEMENTS, PERTINENT TO SAID CONDOMINIUM, AND ITS COMMON ELEMENTS ARE TRUE AND CORRECT TO THE BEST OF OUR PROFESSIONAL KNOWLEDGE AND BELIEF; SAID CONDOMINIUM BOUNDARIES BEING BASED ON A COMPILATION OF DATA ESTABLISHED BY AN EXTENDED PERIODIC SERIES OF ACTUAL FIELD SURVEYS IN THE VICINITY OF SAID CONDOMINIUM PROPERTY PERFORMED BY MRS. RUCKLET, SCHUH & JERNIGAN, INC., INCLUDING THE RECENT "LIMITED TOPOGRAPHIC SURVEY" OF SAID GATEHOUSE DOCKS PERFORMED JANUARY 31, 1986; AND FURTHER, THAT THE CONSTRUCTION OF THE EXISTING IMPROVEMENTS PERTAINING TO SAID CONDOMINIUM AS VERIFIED BY SAID "LIMITED TOPOGRAPHIC SURVEY" AND DEPICTED ON THIS DRAWING AND THE ACCOMPANYING DRAWINGS NUMBERED 1 THROUGH 8 OF 8 OF THIS EXHIBIT "B", AND AS DESCRIBED IN THE DECLARATION OF CONDOMINIUM, ARE SUBSTANTIALLY COMPLETE SO THAT THIS MATERIAL, TOGETHER WITH THE PROVISIONS OF THE DECLARATION DESCRIBING THE CONDOMINIUM PROPERTY SHOWN HEREON, IS AN ACCURATE REPRESENTATION OF THE LOCATION AND DIMENSIONS OF SAID IMPROVEMENTS, AND THAT THE IDENTIFICATION, LOCATION AND DIMENSIONS OF THE COMMON ELEMENTS, LIMITED COMMON AND OF EACH UNIT CAN BE DETERMINED FROM THESE MATERIALS, AND FURTHER, THAT ALL EXISTING IMPROVEMENTS AS DEPICTED HEREON, INCLUDING, BUT NOT LIMITED TO, LANDSCAPING, UTILITY SERVICES, ACCESS TO THE UNITS, COMMON AND LIMITED COMMON ELEMENTS SERVING THE DOCK ON WHICH THE UNITS TO BE CONVEYED ARE LOCATED, HAVE BEEN SUBSTANTIALLY COMPLETED.

MRS. RUCKLET, SCHUH & JERNIGAN, INC.
BY: *Walter H. Okanaka*
WALTER H. OKANAKA, P.L.S.
FLORIDA PROFESSIONAL LAND SURVEYOR
CERTIFICATE OF REGISTRATION NO. 1316
DATE: 4/16/86

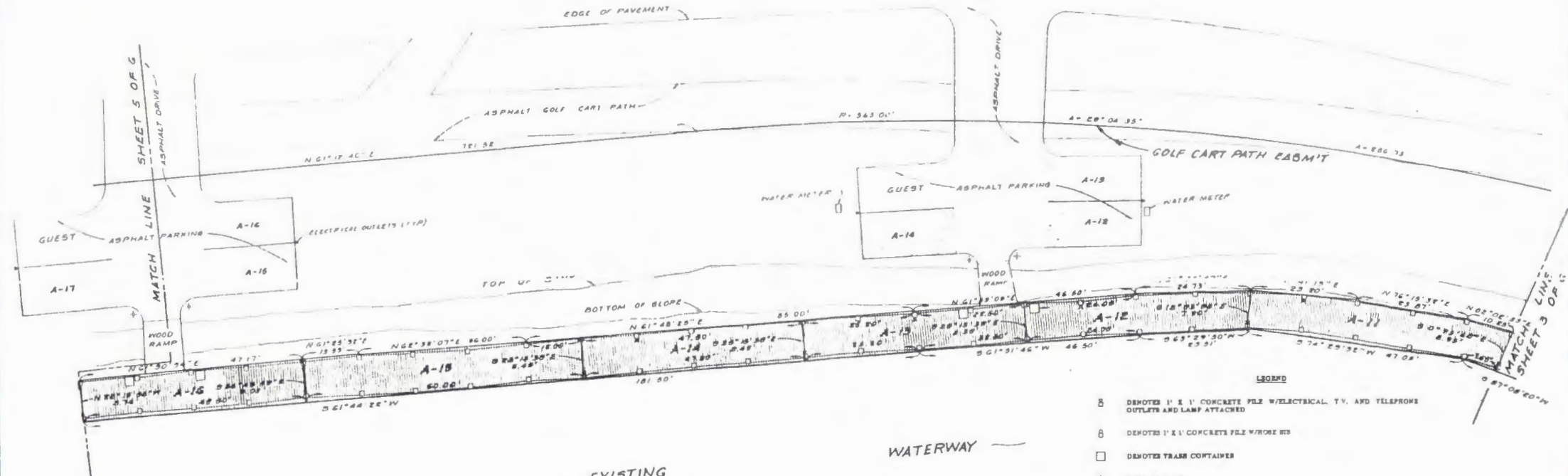
NOT VALID UNLESS
EMBOSSED WITH
RAISED SEAL



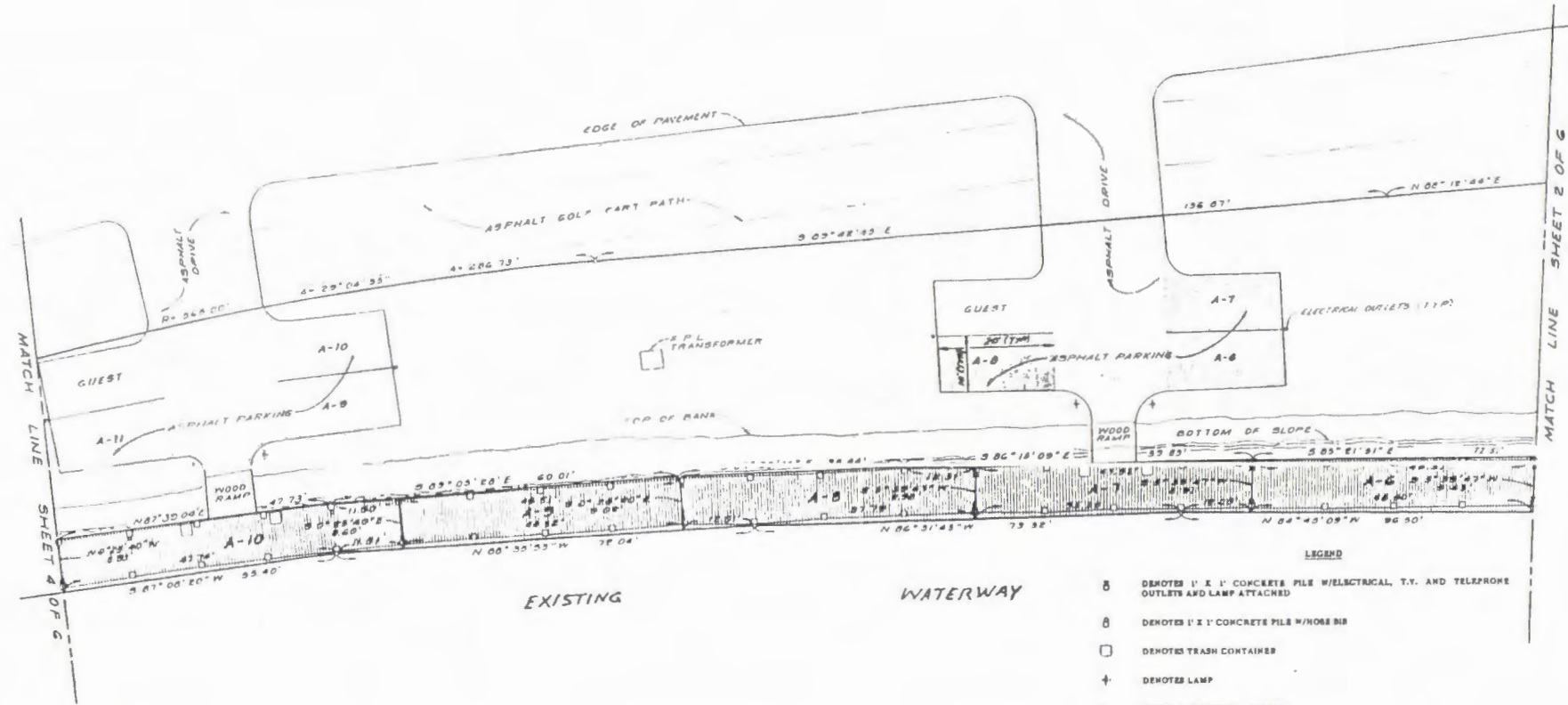
- LEGEND**
- DENOTES 1' X 1' CONCRETE PILE W/ELECTRICAL, TV, AND TELEPHONE OUTLETS AND LAMP ATTACHED
 - DENOTES 1' X 1' CONCRETE PILE W/ROSE BOX
 - DENOTES TRASH CONTAINER
 - DENOTES LAMP
 - DENOTES ELECTRICAL OUTLET
 - DENOTES 1' X 1' CONCRETE PILE W/TIE EXTENDER
 - DENOTES 1' X 1' CONCRETE PILE
 - DENOTES COMMON ELEMENTS
 - DENOTES LIMITED COMMON ELEMENTS
 - DENOTES UNIT



DESIGN: LINDSAY	PREPARED FOR:	 OCEAN REEF CLUB, INC.	Post, Buckley, Schuh & Jernigan, Inc. CONSULTING ENGINEERS AND PLANNERS	GATEHOUSE DOCKS, A CONDOMINIUM OCEAN REEF CLUB	EXHIBIT "B"	3			DATE: 04-359-21		
DRAWN: CORTIZ							2			DATE: MARCH 1986	
CHECKED: HOBBS							1			SCALE AS SHOWN	SHEET 5 OF 6
C.D.: OKAHARA							NO	DATE	REVISION	APP'D BY	
North Key Largo Florida	1 NORTH BROWNE AVENUE	HOMESTEAD	FLORIDA	NORTH KEY LARGO	MONROE COUNTY	FLORIDA					



- LEGEND**
- ⊗ DENOTES 1" x 1" CONCRETE PILE W/ELECTRICAL T.V. AND TELEPHONE OUTLETS AND LAMP ATTACHED
 - ⊗ DENOTES 1" x 1" CONCRETE PILE W/ROSE BUSH
 - DENOTES TRASH CONTAINER
 - ⊕ DENOTES LAMP
 - DENOTES ELECTRICAL OUTLET
 - ⊗ DENOTES 1" x 1" CONCRETE PILE W/TREE EXTINGUISHER
 - DENOTES 1" x 1" CONCRETE PILE
 - DENOTES COMMON ELEMENTS
 - ▨ DENOTES LIMITED COMMON ELEMENTS
 - ▩ DENOTES UNIT



- LEGEND
- ⊗ DENOTES 1" X 1" CONCRETE PILE W/ELECTRICAL, T.V. AND TELEPHONE OUTLETS AND LAMP ATTACHED
 - ⊖ DENOTES 1" X 1" CONCRETE PILE W/HOSE BIB
 - DENOTES TRASH CONTAINER
 - ⊕ DENOTES LAMP
 - DENOTES ELECTRICAL OUTLET
 - ⊠ DENOTES 1" X 1" CONCRETE PILE W/FIRE EXTINGUISHER
 - DENOTES 1" X 1" CONCRETE PILE
 - DENOTES COMMON ELEMENTS
 - ▨ DENOTES LIMITED COMMON ELEMENTS
 - ▩ DENOTES UNIT

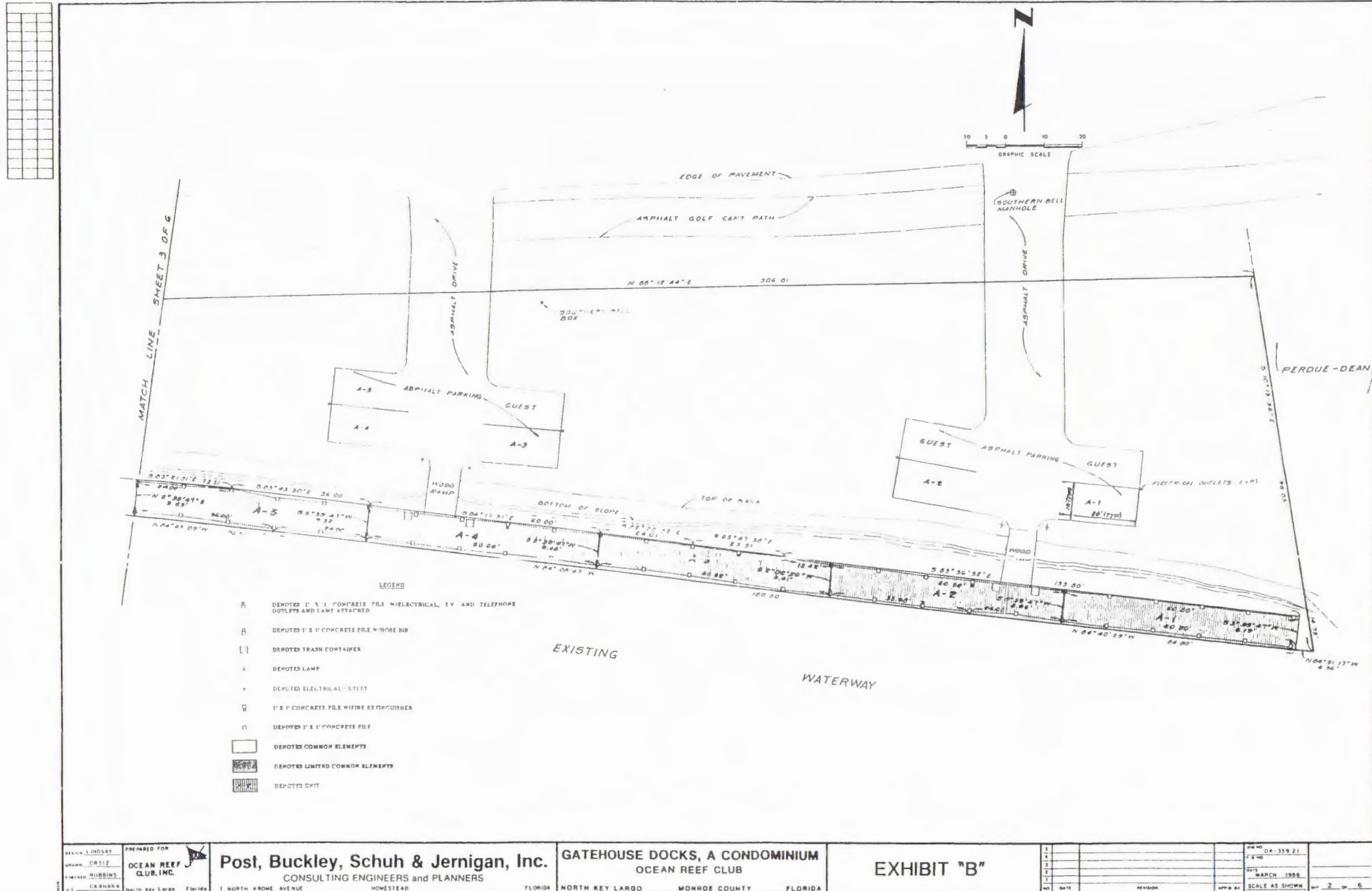


EXHIBIT "C"

SCHEDULE OF INTEREST IN COMMON ELEMENTS,
COMMON EXPENSES AND COMMON SURPLUS

<u>DOCK</u>	<u>INTEREST</u>
A-1	.0420168
A-2	.0420168
A-3	.0420168
A-4	.0420168
A-5	.0420168
A-6	.0336134
A-7	.0336134
A-8	.0336134
A-9	.0336134
A-10	.0420168
A-11	.0336134
A-12	.0336134
A-13	.0336134
A-14	.0336134
A-15	.0420168
A-16	.0336134
A-17	.0336134
A-18	.0336134
A-19	.0336134
A-20	.0336134
A-21	.0336134
A-22	.0336134
A-23	.0336134
A-24	.0336134
A-25	.0336134
A-26	.0420168
A-27	.0252100
A-28	.0252100